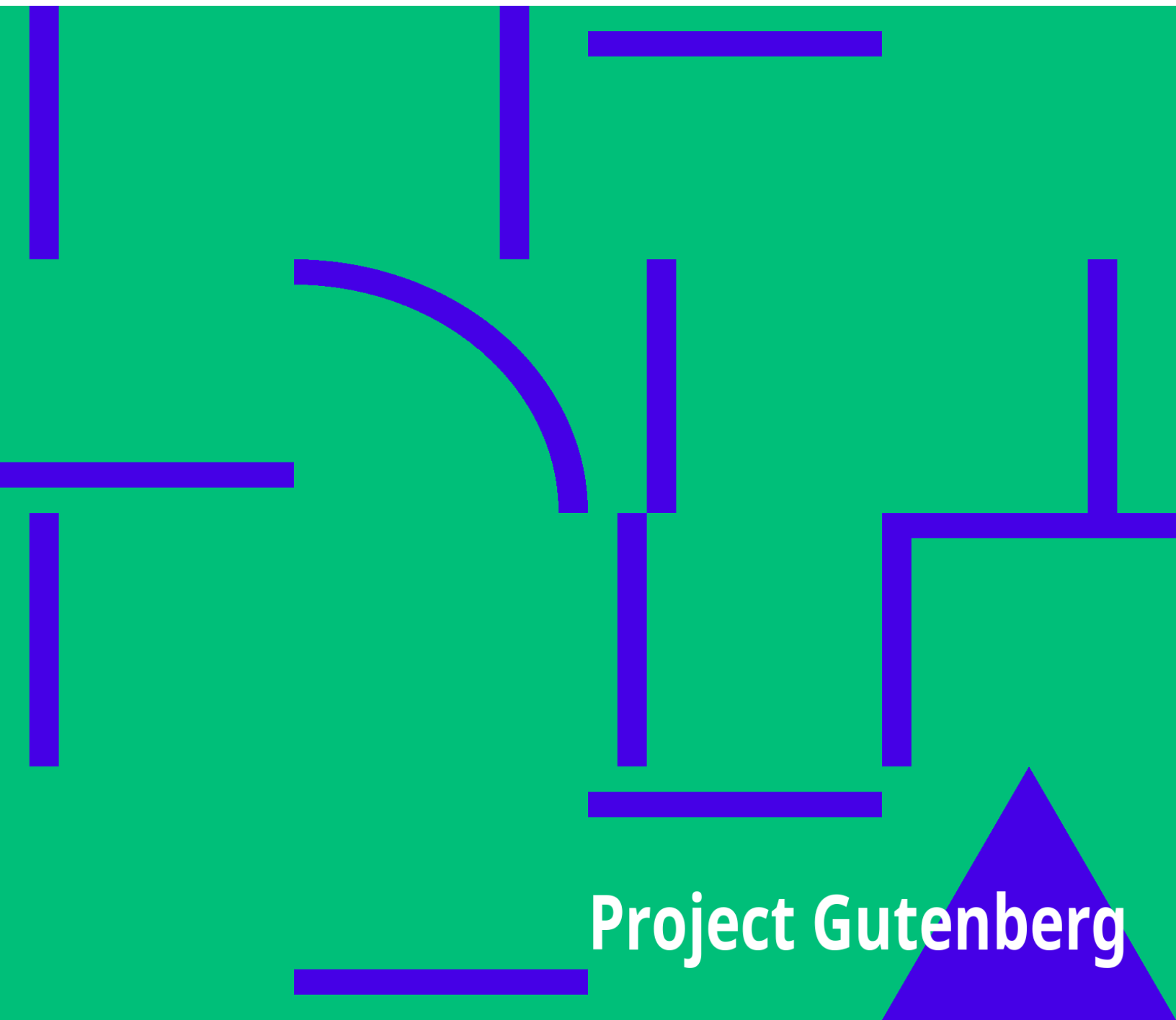


The right to read =

Le droit de lire

Richard Stallman

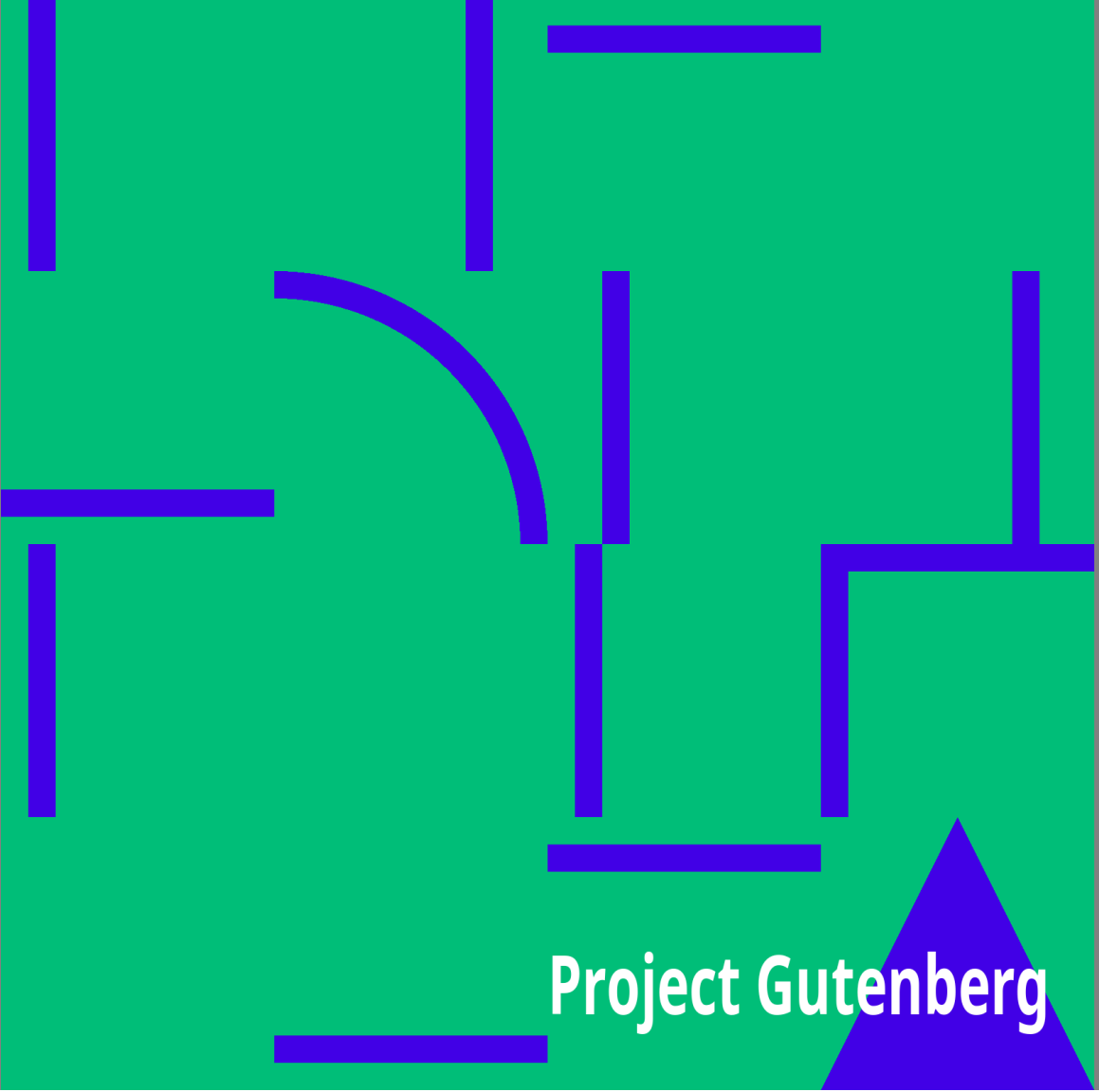
An abstract geometric pattern consisting of various purple lines and shapes on a green background. The pattern includes several vertical and horizontal lines of different lengths, some L-shaped lines, and a large quarter-circle arc. In the bottom right corner, there is a large purple triangle pointing upwards.

Project Gutenberg

The right to read =

Le droit de lire

Richard Stallman



Project Gutenberg

The Project Gutenberg eBook of The right to read =

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

*** This is a COPYRIGHTED Project Gutenberg eBook. Details Below.

*** Please follow the copyright guidelines in this file. ***

Title: The right to read =
Le droit de lire

Author: Richard Stallman

Translator: Pierre Sarrazin

Release date: November 1, 1999 [eBook #1981]
Most recently updated: April 16, 2024

Language: English, French

Original publication: S.l.: s.n., 1999

Other information and formats: www.gutenberg.org/ebooks/1981

*** START OF THE PROJECT GUTENBERG EBOOK THE RIGHT TO
READ = ***

The Right to Read

by Richard Stallman

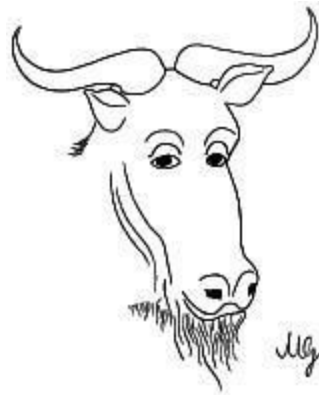


Table of Contents

- [Author's Note](#)
- [References](#)
- [Other Texts to Read](#)

*This article appeared in the February 1997 issue of **Communications of the ACM** (Volume 40, Number 2).*

(from "The Road To Tycho", a collection of articles about the antecedents of the Lunarian Revolution, published in Luna City in 2096)

For Dan Halbert, the road to Tycho began in college--when Lissa Lenz asked to borrow his computer. Hers had broken down, and unless she could borrow another, she would fail her midterm project. There was no one she dared ask, except Dan.

This put Dan in a dilemma. He had to help her--but if he lent her his computer, she might read his books. Aside from the fact that you could go to prison for many years for letting someone else read your books, the very idea shocked him at first. Like everyone, he had been taught since elementary school that sharing books was nasty and wrong--something that only pirates would do.

And there wasn't much chance that the SPA--the Software Protection Authority--would fail to catch him. In his software class, Dan had learned that each book had a copyright monitor that reported when and where it was read, and by whom, to Central Licensing. (They used this information to catch reading pirates, but also to sell personal interest profiles to retailers.) The next time his computer was networked, Central Licensing would find out. He, as computer owner, would receive the harshest punishment--for not taking pains to prevent the crime.

Of course, Lissa did not necessarily intend to read his books. She might want the computer only to write her midterm. But Dan knew she came from a middle-class family and could hardly afford the tuition, let alone her reading fees. Reading his books might be the only way she could graduate. He understood this situation; he himself had had to borrow to pay for all the research papers he read. (10% of those fees went to the researchers who wrote the papers; since Dan aimed for an academic career, he could hope that his own research papers, if frequently referenced, would bring in enough to repay this loan.)

Later on, Dan would learn there was a time when anyone could go to the library and read journal articles, and even books, without

having to pay. There were independent scholars who read thousands of pages without government library grants. But in the 1990s, both commercial and nonprofit journal publishers had begun charging fees for access. By 2047, libraries offering free public access to scholarly literature were a dim memory.

There were ways, of course, to get around the SPA and Central Licensing. They were themselves illegal. Dan had had a classmate in software, Frank Martucci, who had obtained an illicit debugging tool, and used it to skip over the copyright monitor code when reading books. But he had told too many friends about it, and one of them turned him in to the SPA for a reward (students deep in debt were easily tempted into betrayal). In 2047, Frank was in prison, not for pirate reading, but for possessing a debugger.

Dan would later learn that there was a time when anyone could have debugging tools. There were even free debugging tools available on CD or downloadable over the net. But ordinary users started using them to bypass copyright monitors, and eventually a judge ruled that this had become their principal use in actual practice. This meant they were illegal; the debuggers' developers were sent to prison.

Programmers still needed debugging tools, of course, but debugger vendors in 2047 distributed numbered copies only, and only to officially licensed and bonded programmers. The debugger Dan used in software class was kept behind a special firewall so that it could be used only for class exercises.

It was also possible to bypass the copyright monitors by installing a modified system kernel. Dan would eventually find out about the free kernels, even entire free operating systems, that had existed around the turn of the century. But not only were they illegal, like debuggers--you could not install one if you had one,

without knowing your computer's root password. And neither the FBI nor Microsoft Support would tell you that.

Dan concluded that he couldn't simply lend Lissa his computer. But he couldn't refuse to help her, because he loved her. Every chance to speak with her filled him with delight. And that she chose him to ask for help, that could mean she loved him too.

Dan resolved the dilemma by doing something even more unthinkable--he lent her the computer, and told her his password. This way, if Lissa read his books, Central Licensing would think he was reading them. It was still a crime, but the SPA would not automatically find out about it. They would only find out if Lissa reported him.

Of course, if the school ever found out that he had given Lissa his own password, it would be curtains for both of them as students, regardless of what she had used it for. School policy was that any interference with their means of monitoring students' computer use was grounds for disciplinary action. It didn't matter whether you did anything harmful--the offense was making it hard for the administrators to check on you. They assumed this meant you were doing something else forbidden, and they did not need to know what it was.

Students were not usually expelled for this--not directly. Instead they were banned from the school computer systems, and would inevitably fail all their classes.

Later, Dan would learn that this kind of university policy started only in the 1980s, when university students in large numbers began using computers. Previously, universities maintained a different approach to student discipline; they punished activities that were harmful, not those that merely raised suspicion.

Lissa did not report Dan to the SPA. His decision to help her led to their marriage, and also led them to question what they had been taught about piracy as children. The couple began reading about the history of copyright, about the Soviet Union and its restrictions on copying, and even the original United States Constitution. They moved to Luna, where they found others who had likewise gravitated away from the long arm of the SPA. When the Tycho Uprising began in 2062, the universal right to read soon became one of its central aims.

Author's Note

The right to read is a battle being fought today. Although it may take 50 years for our present way of life to fade into obscurity, most of the specific laws and practices described above have already been proposed--either by the Clinton Administration or by publishers.

There is one exception: the idea that the FBI and Microsoft will keep the root passwords for personal computers. This is an extrapolation from the Clipper chip and similar Clinton Administration key-escrow proposals, together with a long-term trend: computer systems are increasingly set up to give absentee operators control over the people actually using the computer system.

The SPA, which actually stands for Software Publisher's Association, is not today an official police force. Unofficially, it acts like one. It invites people to inform on their coworkers and friends; like the Clinton Administration, it advocates a policy of collective responsibility whereby computer owners must actively enforce copyright or be punished.

The SPA is currently threatening small Internet service providers, demanding they permit the SPA to monitor all users.

Most ISPs surrender when threatened, because they cannot afford to fight back in court. (Atlanta Journal-Constitution, 1 Oct 96, D3.) At least one ISP, Community ConneXion in Oakland CA, refused the demand and was actually [sued](#). The SPA is said to have dropped this suit recently, but they are sure to continue the campaign in various other ways.

The university security policies described above are not imaginary. For example, a computer at one Chicago-area university prints this message when you log in (quotation marks are in the original):

"This system is for the use of authorized users only. Individuals using this computer system without authority or in the excess of their authority are subject to having all their activities on this system monitored and recorded by system personnel. In the course of monitoring individuals improperly using this system or in the course of system maintenance, the activities of authorized user may also be monitored. Anyone using this system expressly consents to such monitoring and is advised that if such monitoring reveals possible evidence of illegal activity or violation of University regulations system personnel may provide the evidence of such monitoring to University authorities and/or law enforcement officials."

This is an interesting approach to the Fourth Amendment: pressure most everyone to agree, in advance, to waive their rights under it.

References

- The administration's "White Paper": Information Infrastructure Task Force, Intellectual Property and the National Information Infrastructure: The Report of the Working Group on Intellectual Property Rights (1995).
 - [An explanation of the White Paper: The Copyright Grab](#), Pamela Samuelson, Wired, Jan. 1996
-

Other Texts to Read

FSF & GNU inquiries & questions to gnu@gnu.org. Other [ways to contact](#) the FSF.

Comments on these web pages to webmasters@www.gnu.org, send other questions to gnu@gnu.org.

Copyright 1996 Richard Stallman

Verbatim copying and distribution of this entire article is permitted in any medium, provided this notice is preserved.

Updated: 12 Feb markg

* * * * *

Le droit de lire

Richard Stallman

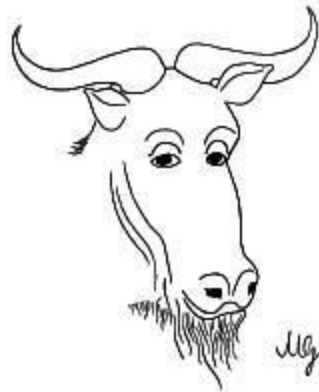


Table of Contents

- [Note de l'auteur](#)
- [References](#)

Cet article a été publié dans la parution de février 1997 de Communications of the ACM (volume 40, numéro 2).

(extrait de "The Road to Tycho", une collection d'articles sur les antécédents de la Révolution lunaire, publiée à Luna City en 2096)

Pour Dan Halbert, la route vers Tycho commença à l'université -- quand Lissa Lenz lui demanda de lui prêter son ordinateur. Le sien était en panne, et à moins qu'elle puisse en emprunter un autre, elle échouerait son projet de mi-session. Il n'y avait personne d'autre à qui elle osait demander, à part Dan.

Ceci posa un dilemme à Dan. Il se devait de l'aider -- mais s'il lui prêtait son ordinateur, elle pourrait lire ses livres. À part le fait que vous pouviez aller en prison pour plusieurs années pour avoir laissé quelqu'un lire vos livres, l'idée même le choqua au départ. Comme à tout le monde, on lui avait enseigné dès l'école primaire que partager des livres était malicieux et immoral -- une chose que seuls les pirates font.

Et il était improbable que la SPA -- la Software Protection Authority -- manquerait de le pincer. Dans ses cours sur les logiciels, Dan avait appris que chaque livre avait un moniteur de copyright qui rapportait quand et où il était lu, et par qui, à la Centrale des licences. (Elle utilisait ces informations pour attraper les lecteurs pirates, mais aussi pour vendre des renseignements personnels à des détaillants.) La prochaine fois que son ordinateur serait en réseau, la Centrale des licences se rendrait compte. Dan, comme propriétaire d'ordinateur, subirait les punitions les plus sévères -- pour ne pas avoir tout tenté pour éviter le crime.

Bien sûr, Lissa n'avait pas nécessairement l'intention de lire ses livres. Elle pourrait ne vouloir l'ordinateur que pour écrire son projet. Mais Dan savait qu'elle venait d'une famille de classe moyenne et qu'elle arrivait difficilement à payer ses frais de scolarité, sans compter ses frais de lecture. Lire les livres de Dan

pourrait être sa seule façon de graduer. Il comprenait cette situation; lui-même avait eu à emprunter pour payer pour tous les articles scientifiques qu'il avait eu à lire. (10% de ces frais allaient aux chercheurs qui écrivaient ces articles; puisque Dan visait une carrière académique, il pouvait espérer que si ses propres articles scientifiques étaient souvent lus, il gagnerait un revenu suffisant pour rembourser sa dette.)

Par la suite, Dan apprendrait qu'il y eut un temps où n'importe qui pouvait aller à la bibliothèque et lire des articles de journaux, et même des livres, sans avoir à payer. Il y avait des universitaires indépendants qui lisaient des milliers de pages sans subventions des bibliothèques gouvernementales. Mais dans les années 1990, les éditeurs aussi bien commerciaux qu'à but non lucratif avaient commencé à facturer l'accès. En 2047, les bibliothèques offrant un accès public gratuit à la littérature scientifique n'étaient qu'un pâle souvenir.

Il y avait des façons, bien sûr, de contourner la SPA et la Centrale des licences. Elles étaient elles-mêmes illégales. Dan avait eu un compagnon de classe dans son cours sur les logiciels, Frank Martucci, qui avait obtenu un outil illégal de débogage, et l'avait utilisé pour outrepasser le code du moniteur de copyright quand il lisait des livres. Mais il en avait parlé à trop d'amis, et l'un d'eux l'a dénoncé auprès de la SPA pour une récompense (des étudiants criblés de dettes pouvaient facilement être tentés par la trahison). En 2047, Frank était en prison, non pas pour lecture pirate, mais pour possession d'un débogueur.

Dan apprendrait plus tard qu'il y eut un temps où n'importe qui pouvait posséder des outils de débogage. Il y avait même des outils de débogage disponibles gratuitement sur des CD ou qu'on pouvait télécharger du Net. Mais des usagers ordinaires commencèrent à s'en servir pour outrepasser les moniteurs de

copyright, et éventuellement un juge a décidé que c'était devenu leur principale utilisation en pratique. Ceci voulait dire qu'ils étaient illégaux; les développeurs de ces débogueurs furent envoyés en prison.

Les programmeurs avaient encore besoin d'outils pour déboguer, bien sûr, mais les vendeurs de débogueurs en 2047 ne distribuaient que des copies numérotées, et seulement à des programmeurs officiellement licenciés et soumis. Le débogueur que Dan utilisait dans son cours sur les logiciels était gardé derrière un garde-barrière spécial afin qu'il ne puisse servir que pour les exercices du cours.

Il était aussi possible de contourner les moniteurs de copyright en installant un noyau système modifié. Dan apprendrait éventuellement l'existence de noyaux libres, et même de systèmes d'exploitation entièrement libres, qui avaient existé au tournant du siècle. Mais non seulement étaient-ils illégaux, comme les débogueurs, mais vous ne pouviez en installer un, si vous en aviez un, sans connaître le mot de passe de l'utilisateur superviseur de votre ordinateur. Or, ni le FBI ni l'Aide technique Microsoft ne vous le révélerait.

Dan conclut qu'il ne pouvait simplement prêter son ordinateur à Lissa. Mais il ne pouvait refuser de l'aider, car il l'aimait. Chaque chance de lui parler le remplissait d'aise. Et le fait qu'elle l'avait choisi pour demander de l'aide pouvait signifier qu'elle l'aimait aussi.

Dan résolut le dilemme en faisant une chose encore plus impensable -- il lui prêta l'ordinateur, et lui dit son mot de passe. Ainsi, si Lissa lisait ses livres, la Centrale des licences penserait que c'était lui qui les lisait. C'était quand même un crime, mais la SPA ne s'en rendrait pas compte automatiquement. Ils ne s'en rendraient compte que si Lissa le dénonçait.

Bien sûr, si l'école devait un jour apprendre qu'il avait donné son propre mot de passe à Lissa, ce serait la fin de leurs études, peu importe ce à quoi le mot de passe aurait servi. La politique de l'école était que toute interférence avec ses mécanismes de surveillance de l'utilisation des ordinateurs par les étudiants était punissable. Il n'importait pas qu'aucun mal n'ait été fait -- l'offense était de se rendre difficile à surveiller par les administrateurs. Ils supposaient que ça signifiait que vous faisiez quelque chose d'autre qui était interdit, et ils n'avaient pas besoin de savoir de quoi il s'agissait.

Les étudiants n'étaient habituellement pas expulsés pour cela -- pas directement. Ils étaient plutôt bannis des systèmes informatiques de l'école, et échouaient inévitablement leurs cours.

Plus tard, Dan apprendrait que ce genre de politique n'a commencé dans les universités que dans les années 1980, quand des étudiants commencèrent à être nombreux à utiliser des ordinateurs. Avant, les universités avaient une approche différente au sujet de la discipline auprès des étudiants; elles punissaient des activités qui causaient du tort, et non pas simplement celles qui soulevaient des doutes.

Lissa ne dénonça pas Dan à la SPA. La décision de Dan de l'aider mena à leur mariage, et les amena aussi à remettre en question ce qu'on leur avait enseigné durant leur enfance au sujet du piratage. Le couple se mit à lire sur l'histoire du copyright, sur l'Union soviétique et ses restrictions sur la copie, et même sur la Constitution originale des États-Unis. Ils déménagèrent à Luna, où ils trouvèrent d'autres gens qui comme eux avaient pris leurs distances par rapport au long bras de la SPA. Quand la révolte de Tycho commença en 2062, le droit universel de lire devint bientôt un de ses buts principaux.

Note de l'auteur

C'est aujourd'hui même qu'on se bat pour le droit de lire. Même si cela pourrait prendre 50 ans pour que notre façon de vivre actuelle s'efface dans l'obscurité, la plupart des lois et pratiques décrites précédemment ont déjà été proposées -- soit par l'Administration Clinton ou par des éditeurs.

Il y a une exception: l'idée que le FBI ou Microsoft gardera les mots de passe de l'utilisateur superviseur des ordinateurs personnels. Ceci est une extrapolation du Clipper Chip et d'autres propositions de "key-escrow" de l'Administration Clinton, ainsi que d'une tendance à long terme: de plus en plus de systèmes informatiques sont configurés pour donner à des opérateurs absents le contrôle sur les gens qui utilisent le système.

La SPA, qui veut en fait dire Software Publisher's Association, n'est pas aujourd'hui une force policière officielle. De façon officieuse, elle se comporte ainsi. Elle invite les gens à faire de la délation à l'endroit de leur collègues et amis; comme l'Administration Clinton, elle préconise une politique de responsabilité collective où les propriétaires d'ordinateurs doivent activement faire respecter le copyright ou être punis.

La SPA menace actuellement de petits fournisseurs d'accès à l'Internet, en exigeant qu'ils lui permettent de surveiller tous les usagers. La plupart des fournisseurs capitulent lorsqu'ils sont menacés, parce qu'ils n'ont pas les moyens de contre-attaquer en cour. (Atlanta Journal-Constitution, 1er octobre 1996, page D3.) Au moins un fournisseur, Community ConneXion à Oakland en Californie, a refusé la demande et a été conséquemment poursuivi. Il appert que la SPA a abandonné cette poursuite récemment, mais ils vont sûrement continuer cette campagne de diverses autres façons.

Les politiques universitaires de sécurité décrites précédemment ne sont pas imaginaires. Par exemple, un ordinateur dans une université de la région de Chicago affiche le message suivant quand on s'y branche (les guillemets sont dans l'original -- ce qui suit est une traduction):

"Ce système est réservé aux usagers autorisés. Les individus qui utilisent ce système informatique sans autorisation ou au delà de leur autorisation pourront faire l'objet d'une surveillance et d'un enregistrement par le personnel de toutes leurs activités sur ce système. Lors de la surveillance d'individus utilisant le système inadéquatement, ou lors d'activités d'entretien du système, les activités d'usagers autorisés pourraient aussi être surveillées. Quiconque utilise ce système consent expressément à une telle surveillance et est avisé que si cette surveillance révèle des indices d'une possible activité illégale ou violation des règlements de l'Université, le personnel du système peut fournir ces indices aux autorités de l'Université et/ou aux forces de l'ordre."

Il s'agit d'une approche intéressante face au Quatrième amendement: faire pression sur presque tout le monde pour qu'il accepte d'avance de renoncer aux droits qu'il leur accorde.

References

- The administration's "White Paper": Information Infrastructure Task Force, Intellectual Property and the National Information

Infrastructure: The Report of the Working Group on Intellectual Property Rights (1995).

- [An explanation of the White Paper: The Copyright Grab](#), Pamela Samuelson, Wired, Jan. 1996

FSF & GNU inquiries & questions to gnu@gnu.org. Other [ways to contact](#) the FSF.

Comments on these web pages to webmasters@www.gnu.org, send other questions to gnu@gnu.org.

Copyright 1996 Richard Stallman
Translated by Pierre Sarrazin [ps@cam.org] on February 16th, 1999.

Verbatim copying and distribution of this entire article is permitted in any medium, provided this notice is preserved.

Updated: 13 Mar 1999 jonas

*** END OF THE PROJECT GUTENBERG EBOOK THE RIGHT TO
READ = ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

This particular work is one of the few individual works protected by copyright law in the United States and most of the remainder of the world, included in the Project Gutenberg collection with the permission of the copyright holder. Information on the copyright owner for this particular work and the terms of use imposed by the copyright holder on this work are set forth at the beginning of this work.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no

restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no

additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.